



ARIZONA HOUSE OF REPRESENTATIVES FLOOR AMENDMENT EXPLANATION

57th Legislature, 2nd Regular Session

Majority Research Staff

HB 2380: school districts; board meetings; expenditures

GRESS FLOOR AMENDMENT

1. Requires a school district governing board (governing board) to provide access to all governing board and subcommittee meeting materials, subject to the following:
 - a. materials presented at a governing board meeting must be provided online and in the same manner as the governing board provides online access to meeting notices; and
 - b. subcommittee meeting materials, materials presented at a subcommittee meeting and supplemental materials provided to governing board members in preparation for a governing board meeting or subcommittee meeting must be provided:
 - i. on request and within five business days after the date on which the school district receives the request; or
 - ii. online.

GRESS FLOOR AMENDMENT
HOUSE OF REPRESENTATIVES AMENDMENTS TO H.B. 2380
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[~~GREEN STRIKEOUT IN BRACKETS~~] indicates new text removed from statute or previously enacted session law.

[~~Green strikeout in brackets~~] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<~~Green strikeout in carets~~>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 15-321, Arizona Revised Statutes, is amended to
3 read:

4 15-321. Organization; election of president; meetings;
5 quorum; execution of warrants; exemption

6 A. For the purpose of organizing the governing board, the board
7 shall meet at the most convenient public facility in the school
8 district. ~~If a public facility is not available within the district, the~~
9 ~~governing board may meet at any available public facility that is~~
10 ~~convenient to all governing board members, regardless of the county or~~
11 ~~school district in which the facility is located. The governing board~~
12 ~~shall meet~~ in January next following the election.

13 B. At the organization meeting the governing board shall elect from
14 among the membership of the board a president.

15 C. For the purposes of regular meetings of the governing board, the
16 board shall meet at the most convenient public facility in the school
17 district. ~~If a public facility is not available within the district, the~~
18 ~~governing board may meet at any available public facility that is~~
19 ~~convenient to all governing board members, regardless of the county or~~
20 ~~school district in which the facility is located.~~

21 D. The board shall prescribe rules for its own government. It
22 shall hold a regular meeting at least once each month during the regular
23 school year and may hold other meetings as often as called. If action has
24 been taken and documents approved at a meeting, they may be signed
25 subsequently by individual board members.

1 E. Business shall be conducted at regular or special meetings.
2 Notice of a special meeting, and of the hour for a regular meeting if no
3 hour is fixed by a rule of the board, shall be delivered personally or by
4 telephone.

5 F. Notwithstanding section 1-216, if there is a vacancy or
6 vacancies on the governing board, a majority of the remaining members of
7 the governing board constitute a quorum for the transaction of business,
8 except that a single member of the governing board does not constitute a
9 quorum.

10 G. An order on a county school superintendent for a salary or other
11 expense shall be signed by the governing board. An order for a salary or
12 other expense may be signed between board meetings if a resolution to that
13 effect has been passed before the signing at a regular or special meeting
14 of the governing board and the order is ratified by the board at the next
15 regular or special meeting of the governing board.

16 H. This section does not apply to county school superintendents in
17 the conduct of an accommodation school.

18 Sec. 2. Section 15-341, Arizona Revised Statutes, is amended to
19 read:

20 15-341. General powers and duties; immunity; delegation

21 A. Each school district governing board shall:

22 1. Prescribe and enforce policies and procedures to govern the
23 schools that are not inconsistent with the laws or rules prescribed by the
24 state board of education.

25 2. Exclude from schools all books, publications, papers or
26 audiovisual materials of a sectarian, partisan or denominational
27 character. This paragraph does not prohibit the elective course allowed
28 by section 15-717.01.

29 3. Manage and control the school property within its district,
30 except that a district may enter into a partnership with an entity,
31 including a charter school, another school district or a military base, to
32 operate a school or offer educational services in a district building,
33 including at a vacant or partially used building, or in any building on
34 the entity's property pursuant to a written agreement between the parties.

35 4. Acquire school furniture, apparatus, equipment, library books
36 and supplies for the schools to use.

37 5. Prescribe the curricula and criteria for the promotion and
38 graduation of pupils as provided in sections 15-701 and 15-701.01.

39 6. Furnish, repair and insure, at full insurable value, the school
40 property of the district.

41 7. Construct school buildings on approval by a vote of the district
42 electors.

43 8. In the name of the district, convey property belonging to the
44 district and sold by the board.

45 9. Purchase school sites when authorized by a vote of the district
46 at an election conducted as nearly as practicable in the same manner as
47 the election provided in section 15-481 and held on a date prescribed in

1 section 15-491, subsection E, but such authorization shall not necessarily
2 specify the site to be purchased and such authorization shall not be
3 necessary to exchange unimproved property as provided in section 15-342,
4 paragraph 23.

5 10. Construct, improve and furnish buildings used for school
6 purposes when such buildings or premises are leased from the national park
7 service.

8 11. Purchase school sites or construct, improve and furnish school
9 buildings from the proceeds of the sale of school property only on
10 approval by a vote of the district electors.

11 12. Hold pupils to strict account for disorderly conduct on school
12 property.

13 13. Discipline students for disorderly conduct on the way to and
14 from school.

15 14. Except as provided in section 15-1224, deposit all monies
16 received by the district as gifts, grants and devises with the county
17 treasurer who shall credit the deposits as designated in the uniform
18 system of financial records. If not inconsistent with the terms of the
19 gifts, grants and devises given, any balance remaining after expenditures
20 for the intended purpose of the monies have been made shall be used to
21 reduce school district taxes for the budget year, except that in the case
22 of accommodation schools the county treasurer shall carry the balance
23 forward for use by the county school superintendent for accommodation
24 schools for the budget year.

25 15. Provide that, if a parent or legal guardian chooses not to
26 accept a decision of the teacher as provided in paragraph 42 of this
27 subsection, the parent or legal guardian may request in writing that the
28 governing board review the teacher's decision. This paragraph does not
29 release school districts from any liability relating to a child's
30 promotion or retention.

31 16. Provide for adequate supervision over pupils in instructional
32 and noninstructional activities by certificated or noncertificated
33 personnel.

34 17. Use school monies received from the state and county school
35 apportionment exclusively to pay salaries of teachers and other employees
36 and contingent expenses of the district.

37 18. Annually report to the county school superintendent on or
38 before October 1 in the manner and form and on the blanks prescribed by
39 the superintendent of public instruction or county school superintendent.
40 The board shall also report directly to the county school superintendent
41 or the superintendent of public instruction whenever required.

42 19. Deposit all monies received by school districts other than
43 student activities monies or monies from auxiliary operations as provided
44 in sections 15-1125 and 15-1126 with the county treasurer to the credit of
45 the school district except as provided in paragraph 20 of this subsection
46 and sections 15-1223 and 15-1224, and the board shall spend the monies as
47 provided by law for other school funds.

1 20. Establish bank accounts in which the board during a month may
2 deposit miscellaneous monies received directly by the district. The board
3 shall remit monies deposited in the bank accounts at least monthly to the
4 county treasurer for deposit as provided in paragraph 19 of this
5 subsection and in accordance with the uniform system of financial records.

6 21. Prescribe and enforce policies and procedures for disciplinary
7 action against a teacher who engages in conduct that is a violation of the
8 policies of the governing board but that is not cause for dismissal of the
9 teacher or for revocation of the certificate of the teacher. Disciplinary
10 action may include suspension without pay for a period of time not to
11 exceed ten school days. Disciplinary action shall not include suspension
12 with pay or suspension without pay for a period of time longer than ten
13 school days. The procedures shall include notice, hearing and appeal
14 provisions for violations that are cause for disciplinary action. The
15 governing board may designate a person or persons to act on behalf of the
16 board on these matters.

17 22. Prescribe and enforce policies and procedures for disciplinary
18 action against an administrator who engages in conduct that is a violation
19 of the policies of the governing board regarding duties of administrators
20 but that is not cause for dismissal of the administrator or for revocation
21 of the certificate of the administrator. Disciplinary action may include
22 suspension without pay for a period of time not to exceed ten school days.
23 Disciplinary action shall not include suspension with pay or suspension
24 without pay for a period of time longer than ten school days. The
25 procedures shall include notice, hearing and appeal provisions for
26 violations that are cause for disciplinary action. The governing board
27 may designate a person or persons to act on behalf of the board on these
28 matters. For violations that are cause for dismissal, the provisions of
29 notice, hearing and appeal in chapter 5, article 3 of this title apply.
30 The filing of a timely request for a hearing suspends the imposition of a
31 suspension without pay or a dismissal pending completion of the hearing.

32 23. Notwithstanding sections 13-3108 and 13-3120, prescribe and
33 enforce policies and procedures that prohibit a person from carrying or
34 possessing a weapon on school grounds unless the person is a peace officer
35 or has obtained specific authorization from the school administrator.

36 24. Prescribe and enforce policies and procedures relating to the
37 health and safety of all pupils participating in district-sponsored
38 practice sessions or games or other interscholastic athletic activities,
39 including:

40 (a) The provision of water.

41 (b) Guidelines, information and forms, developed in consultation
42 with a statewide private entity that supervises interscholastic
43 activities, to inform and educate coaches, pupils and parents of the
44 dangers of concussions and head injuries and the risks of continued
45 participation in athletic activity after a concussion. The policies and
46 procedures shall require that, before a pupil participates in an athletic
47 activity, the pupil and the pupil's parent sign an information form at

1 least once each school year that states that the parent is aware of the
2 nature and risk of concussion. The policies and procedures shall require
3 that a pupil who is suspected of sustaining a concussion in a practice
4 session, game or other interscholastic athletic activity be immediately
5 removed from the athletic activity and that the pupil's parent or guardian
6 be notified. A coach from the pupil's team or an official or a licensed
7 health care provider may remove a pupil from play. A team parent may also
8 remove the parent's own child from play. A pupil may return to play on
9 the same day if a health care provider rules out a suspected concussion at
10 the time the pupil is removed from play. On a subsequent day, the pupil
11 may return to play if the pupil has been evaluated by and received written
12 clearance to resume participation in athletic activity from a health care
13 provider who has been trained in evaluating and managing concussions and
14 head injuries. A health care provider who is a volunteer and who provides
15 clearance to participate in athletic activity on the day of the suspected
16 injury or on a subsequent day is immune from civil liability with respect
17 to all decisions made and actions taken that are based on good faith
18 implementation of the requirements of this subdivision, except in cases of
19 gross negligence or wanton or wilful neglect. A school district, school
20 district employee, team coach, official or team volunteer or a parent or
21 guardian of a team member is not subject to civil liability for any act,
22 omission or policy undertaken in good faith to comply with the
23 requirements of this subdivision or for a decision made or an action taken
24 by a health care provider. A group or organization that uses property or
25 facilities owned or operated by a school district for athletic activities
26 shall comply with the requirements of this subdivision. A school district
27 and its employees and volunteers are not subject to civil liability for
28 any other person or organization's failure or alleged failure to comply
29 with the requirements of this subdivision. This subdivision does not
30 apply to teams that are based in another state and that participate in an
31 athletic activity in this state. For the purposes of this subdivision,
32 athletic activity does not include dance, rhythmic gymnastics,
33 competitions or exhibitions of academic skills or knowledge or other
34 similar forms of physical noncontact activities, civic activities or
35 academic activities, whether engaged in for the purposes of competition or
36 recreation. For the purposes of this subdivision, "health care provider"
37 means a physician who is licensed pursuant to title 32, chapter 13, 14 or
38 17, an athletic trainer who is licensed pursuant to title 32, chapter 41,
39 a nurse practitioner who is licensed pursuant to title 32, chapter 15, and
40 a physician assistant who is licensed pursuant to title 32, chapter 25.

41 (c) Guidelines, information and forms that are developed in
42 consultation with a statewide private entity that supervises
43 interscholastic activities to inform and educate coaches, pupils and
44 parents of the dangers of heat-related illnesses, sudden cardiac death and
45 prescription opioid use. Before a pupil participates in any
46 district-sponsored practice session or game or other interscholastic
47 athletic activity, the pupil and the pupil's parent must be provided with

1 information at least once each school year on the risks of heat-related
2 illnesses, sudden cardiac death and prescription opioid addiction.

3 25. Establish an assessment, data gathering and reporting system as
4 prescribed in chapter 7, article 3 of this title.

5 26. Provide special education programs and related services
6 pursuant to section 15-764, subsection A to all children with disabilities
7 as defined in section 15-761.

8 27. Administer competency tests prescribed by the state board of
9 education for the graduation of pupils from high school.

10 28. Ensure that insurance coverage is secured for all construction
11 projects for purposes of general liability, property damage and workers'
12 compensation and secure performance and payment bonds for all construction
13 projects.

14 29. Collect and maintain information about each current and former
15 teacher's educational and teaching background and experience in a
16 particular academic content subject area. A school district shall either
17 post the information on the school district's website or make the
18 information available for inspection on request of parents and guardians
19 of pupils enrolled at a school. This paragraph does not require any
20 school to release personally identifiable information in relation to any
21 teacher, including the teacher's address, salary, social security number
22 or telephone number.

23 30. Report to local law enforcement agencies any suspected crime
24 against a person or property that is a serious offense as defined in
25 section 13-706 or that involves a deadly weapon or dangerous instrument or
26 serious physical injury and any conduct that poses a threat of death or
27 serious physical injury to employees, students or anyone on the property
28 of the school. This paragraph does not limit or preclude the reporting by
29 a school district or an employee of a school district of suspected crimes
30 other than those required to be reported by this paragraph. For the
31 purposes of this paragraph, "dangerous instrument", "deadly weapon" and
32 "serious physical injury" have the same meanings prescribed in section
33 13-105.

34 31. In conjunction with local law enforcement agencies and
35 emergency response agencies, develop an emergency response plan for each
36 school in the school district in accordance with minimum standards
37 developed jointly by the department of education and the division of
38 emergency management within the department of emergency and military
39 affairs. Any emergency response plan developed pursuant to this paragraph
40 must address how the school and emergency responders will communicate with
41 and provide assistance to students with disabilities.

42 32. Provide written notice to the parents or guardians of all
43 students enrolled in the school district at least ten days before a public
44 meeting to discuss closing a school within the school district. The
45 notice shall include the reasons for the proposed closure and the time and
46 place of the meeting. The governing board shall fix a time for a public
47 meeting on the proposed closure not less than ten days before voting in a

1 public meeting to close the school. The school district governing board
2 shall give notice of the time and place of the meeting. At the time and
3 place designated in the notice, the school district governing board shall
4 hear reasons for or against closing the school. The school district
5 governing board is exempt from this paragraph if the governing board
6 determines that the school shall be closed because it poses a danger to
7 the health or safety of the pupils or employees of the school. A
8 governing board may consult with the division of school facilities within
9 the department of administration for technical assistance and for
10 information on the impact of closing a school. The information provided
11 from the division of school facilities within the department of
12 administration shall not require the governing board to take or not take
13 any action.

14 33. Incorporate instruction on Native American history into
15 appropriate existing curricula.

16 34. Prescribe and enforce policies and procedures:

17 (a) Allowing pupils who have been diagnosed with anaphylaxis by a
18 health care provider licensed pursuant to title 32, chapter 13, 14, 17 or
19 25 or by a registered nurse practitioner licensed and certified pursuant
20 to title 32, chapter 15 to carry and self-administer emergency
21 medications, including epinephrine delivery systems, while at school and
22 at school-sponsored activities. The pupil's name on the prescription
23 label on the medication container or on the medication device and annual
24 written documentation from the pupil's parent or guardian to the school
25 that authorizes possession and self-administration is sufficient proof
26 that the pupil is entitled to possess and self-administer the
27 medication. The policies shall require a pupil who uses an epinephrine
28 delivery system while at school and at school-sponsored activities to
29 notify the nurse or the designated school staff person of the use of the
30 medication as soon as practicable. A school district and its employees
31 are immune from civil liability with respect to all decisions made and
32 actions taken that are based on good faith implementation of the
33 requirements of this subdivision, except in cases of wanton or wilful
34 neglect.

35 (b) For the emergency administration of epinephrine delivery
36 systems by a trained employee of a school district pursuant to section
37 15-157.

38 35. Allow the possession and self-administration of prescription
39 medication for breathing disorders in handheld inhaler devices by pupils
40 who have been prescribed that medication by a health care professional
41 licensed pursuant to title 32. The pupil's name on the prescription label
42 on the medication container or on the handheld inhaler device and annual
43 written documentation from the pupil's parent or guardian to the school
44 that authorizes possession and self-administration is sufficient proof
45 that the pupil is entitled to possess and self-administer the medication.
46 A school district and its employees are immune from civil liability with

1 respect to all decisions made and actions taken that are based on a good
2 faith implementation of the requirements of this paragraph.

3 36. Prescribe and enforce policies and procedures to prohibit
4 pupils from harassing, intimidating and bullying other pupils on school
5 grounds, on school property, on school buses, at school bus stops, at
6 school-sponsored events and activities and through the use of electronic
7 technology or electronic communication on school computers, networks,
8 forums and mailing lists that include the following components:

9 (a) A procedure for pupils, parents and school district employees
10 to confidentially report to school officials incidents of harassment,
11 intimidation or bullying. The school shall make available written forms
12 designed to provide a full and detailed description of the incident and
13 any other relevant information about the incident.

14 (b) A requirement that school district employees report in writing
15 suspected incidents of harassment, intimidation or bullying to the
16 appropriate school official and a description of appropriate disciplinary
17 procedures for employees who fail to report suspected incidents that are
18 known to the employee.

19 (c) A requirement that, at the beginning of each school year,
20 school officials provide all pupils with a written copy of the rights,
21 protections and support services available to a pupil who is an alleged
22 victim of an incident reported pursuant to this paragraph.

23 (d) If an incident is reported pursuant to this paragraph, a
24 requirement that school officials provide a pupil who is an alleged victim
25 of the incident with a written copy of the rights, protections and support
26 services available to that pupil.

27 (e) A formal process for documenting reported incidents of
28 harassment, intimidation or bullying and providing for the
29 confidentiality, maintenance and disposition of this documentation.
30 School districts shall maintain documentation of all incidents reported
31 pursuant to this paragraph for at least six years. The school shall not
32 use that documentation to impose disciplinary action unless the
33 appropriate school official has investigated and determined that the
34 reported incidents of harassment, intimidation or bullying occurred. If a
35 school provides documentation of reported incidents to persons other than
36 school officials or law enforcement, all individually identifiable
37 information shall be redacted.

38 (f) A formal process for the appropriate school officials to
39 investigate suspected incidents of harassment, intimidation or bullying,
40 including procedures for notifying the alleged victim and the alleged
41 victim's parent or guardian when a school official or employee becomes
42 aware of the suspected incident of harassment, intimidation or bullying.

43 (g) Disciplinary procedures for pupils who have admitted or been
44 found to have committed incidents of harassment, intimidation or bullying.

45 (h) A procedure that sets forth consequences for submitting false
46 reports of incidents of harassment, intimidation or bullying.

1 (i) Procedures designed to protect the health and safety of pupils
2 who are physically harmed as the result of incidents of harassment,
3 intimidation and bullying, including, if appropriate, procedures to
4 contact emergency medical services or law enforcement agencies, or both.

5 (j) Definitions of harassment, intimidation and bullying.

6 37. Prescribe and enforce policies and procedures regarding
7 changing or adopting attendance boundaries that include the following
8 components:

9 (a) A procedure for holding public meetings to discuss attendance
10 boundary changes or adoptions that allows public comments.

11 (b) A procedure to notify the parents or guardians of the students
12 affected, including assurance that, if that school remains open as part of
13 the boundary change and capacity is available, students assigned to a new
14 attendance area may stay enrolled in their current school.

15 (c) A procedure to notify the residents of the households affected
16 by the attendance boundary changes.

17 (d) A process for placing public meeting notices and proposed maps
18 on the school district's website for public review, if the school district
19 maintains a website.

20 (e) A formal process for presenting the attendance boundaries of
21 the affected area in public meetings that allows public comments.

22 (f) A formal process for notifying the residents and parents or
23 guardians of the affected area as to the decision of the governing board
24 on the school district's website, if the school district maintains a
25 website.

26 (g) A formal process for updating attendance boundaries on the
27 school district's website within ninety days after an adopted boundary
28 change. The school district shall send a direct link to the school
29 district's attendance boundaries website to the department of real estate.

30 38. If the state board of education determines that the school
31 district has committed an overexpenditure as defined in section 15-107,
32 provide a copy of the fiscal management report submitted pursuant to
33 section 15-107, subsection H on its website and make copies available to
34 the public on request. The school district shall comply with a request
35 within five business days after receipt.

36 39. Ensure that the contract for the superintendent is structured
37 in a manner in which up to twenty percent of the total annual salary
38 included for the superintendent in the contract is classified as
39 performance pay. This paragraph does not require school districts to
40 increase total compensation for superintendents. Unless the school
41 district governing board votes to implement an alternative procedure at a
42 public meeting called for this purpose, the performance pay portion of the
43 superintendent's total annual compensation shall be determined as follows:

44 (a) Twenty-five percent of the performance pay shall be determined
45 based on the percentage of academic gain determined by the department of
46 education of pupils who are enrolled in the school district compared to
47 the academic gain achieved by the highest ranking of the fifty largest

1 school districts in this state. For the purposes of this subdivision, the
2 department of education shall determine academic gain by the academic
3 growth achieved by each pupil who has been enrolled at the same school in
4 a school district for at least five consecutive months measured against
5 that pupil's academic results in the 2008-2009 school year. For the
6 purposes of this subdivision, of the fifty largest school districts in
7 this state, the school district with pupils who demonstrate the highest
8 statewide percentage of overall academic gain measured against academic
9 results for the 2008-2009 school year shall be assigned a score of 100 and
10 the school district with pupils who demonstrate the lowest statewide
11 percentage of overall academic gain measured against academic results for
12 the 2008-2009 school year shall be assigned a score of 0.

13 (b) Twenty-five percent of the performance pay shall be determined
14 by the percentage of parents of pupils who are enrolled at the school
15 district who assign a letter grade of "A" to the school on a survey of
16 parental satisfaction with the school district. The parental satisfaction
17 survey shall be administered and scored by an independent entity that is
18 selected by the governing board and that demonstrates sufficient expertise
19 and experience to accurately measure the results of the survey. The
20 parental satisfaction survey shall use standard random sampling procedures
21 and provide anonymity and confidentiality to each parent who participates
22 in the survey. The letter grade scale used on the parental satisfaction
23 survey shall direct parents to assign one of the following letter grades:

- 24 (i) A letter grade of "A" if the school district is excellent.
25 (ii) A letter grade of "B" if the school district is above average.
26 (iii) A letter grade of "C" if the school district is average.
27 (iv) A letter grade of "D" if the school district is below average.
28 (v) A letter grade of "F" if the school district is a failure.

29 (c) Twenty-five percent of the performance pay shall be determined
30 by the percentage of teachers who are employed at the school district and
31 who assign a letter grade of "A" to the school on a survey of teacher
32 satisfaction with the school. The teacher satisfaction survey shall be
33 administered and scored by an independent entity that is selected by the
34 governing board and that demonstrates sufficient expertise and experience
35 to accurately measure the results of the survey. The teacher satisfaction
36 survey shall use standard random sampling procedures and provide anonymity
37 and confidentiality to each teacher who participates in the survey. The
38 letter grade scale used on the teacher satisfaction survey shall direct
39 teachers to assign one of the following letter grades:

- 40 (i) A letter grade of "A" if the school district is excellent.
41 (ii) A letter grade of "B" if the school district is above average.
42 (iii) A letter grade of "C" if the school district is average.
43 (iv) A letter grade of "D" if the school district is below average.
44 (v) A letter grade of "F" if the school district is a failure.

45 (d) Twenty-five percent of the performance pay shall be determined
46 by other criteria selected by the governing board.

1 40. Maintain and store permanent public records of the school
2 district as required by law. Notwithstanding section 39-101, the
3 standards adopted by the Arizona state library, archives and public
4 records for the maintenance and storage of school district public records
5 shall allow school districts to elect to satisfy the requirements of this
6 paragraph by maintaining and storing these records either on paper or in
7 an electronic format, or a combination of a paper and electronic format.

8 41. Adopt in a public meeting and implement policies for principal
9 evaluations. Before adopting principal evaluation policies, the school
10 district governing board shall provide opportunities for public discussion
11 on the proposed policies. The governing board shall adopt policies that:

12 (a) Are designed to improve principal performance and improve
13 student achievement.

14 (b) Include the use of quantitative data on the academic progress
15 for all students, which shall account for between twenty percent and
16 thirty-three percent of the evaluation outcomes.

17 (c) Include four performance classifications, designated as highly
18 effective, effective, developing and ineffective.

19 (d) Describe both of the following:

20 (i) The methods used to evaluate the performance of principals,
21 including the data used to measure student performance and job
22 effectiveness.

23 (ii) The formula used to determine evaluation outcomes.

24 42. Prescribe and enforce policies and procedures that define the
25 duties of principals and teachers. These policies and procedures shall
26 authorize teachers to take and maintain daily classroom attendance, make
27 the decision to promote or retain a pupil in a grade in common school or
28 to pass or fail a pupil in a course in high school, subject to review by
29 the governing board in the manner provided in section 15-342,
30 paragraph 11.

31 43. Prescribe and enforce policies and procedures for the emergency
32 administration by an employee of a school district pursuant to section
33 36-2267 of naloxone hydrochloride or any other opioid antagonist approved
34 by the United States food and drug administration.

35 44. In addition to the notification requirements prescribed in
36 paragraph 36 of this subsection, prescribe and enforce reasonable and
37 appropriate policies to notify a pupil's parent or guardian if any person
38 engages in harassing, threatening or intimidating conduct against that
39 pupil. A school district and its officials and employees are immune from
40 civil liability with respect to all decisions made and actions taken that
41 are based on good faith implementation of the requirements of this
42 paragraph, except in cases of gross negligence or wanton or wilful
43 neglect. A person engages in threatening or intimidating if the person
44 threatens or intimidates by word or conduct to cause physical injury to
45 another person or serious damage to the property of another on school
46 grounds. A person engages in harassment if, with intent to harass or with
47 knowledge that the person is harassing another person, the person

1 anonymously or otherwise contacts, communicates or causes a communication
2 with another person by verbal, electronic, mechanical, telephonic or
3 written means in a manner that harasses on school grounds or substantially
4 disrupts the school environment.

5 45. Each fiscal year, provide to each school district employee a
6 total compensation statement that is broken down by category of benefit or
7 payment and that includes, for that employee, at least all of the
8 following:

9 (a) Base salary and any additional pay.

10 (b) Medical benefits and the value of any employer-paid portions of
11 insurance plan premiums.

12 (c) Retirement benefit plans, including social security.

13 (d) Legally required benefits.

14 (e) Any paid leave.

15 (f) Any other payment made to or on behalf of the employee.

16 (g) Any other benefit provided to the employee.

17 46. Develop and adopt in a public meeting policies to allow for
18 visits, tours and observations of all classrooms by parents of enrolled
19 pupils and parents who wish to enroll their children in the school
20 district unless a visit, tour or observation threatens the health and
21 safety of pupils and staff. These policies and procedures must be easily
22 accessible from the home page on each school's website.

23 47. HOLD ALL MEETINGS OF THE GOVERNING BOARD AND OF THE GOVERNING
24 BOARD'S SUBCOMMITTEES, AS DEFINED IN SECTION 38-431, AT A PUBLIC FACILITY
25 IN THE SCHOOL DISTRICT, SUBJECT TO THE REQUIREMENTS OF TITLE 38, CHAPTER
26 3, ARTICLE 3.1. THE GOVERNING BOARD SHALL ALSO:

27 (a) PROVIDE THE PUBLIC WITH ~~[ONLINE]~~ ACCESS TO ALL GOVERNING BOARD
28 MEETING AND SUBCOMMITTEE MEETING MATERIALS~~[, INCLUDING SUPPLEMENTAL~~
29 ~~MATERIALS PRESENTED AT EACH MEETING OR PROVIDED TO THE GOVERNING BOARD~~
30 ~~MEMBERS IN PREPARATION FOR THE MEETING[, IN THE SAME MANNER AS THE~~
31 ~~GOVERNING BOARD PROVIDES ONLINE ACCESS TO MEETING NOTICES]~~ [SUBJECT TO THE
32 FOLLOWING:

33 (i) MATERIALS THAT ARE PRESENTED AT A GOVERNING BOARD MEETING MUST
34 BE PROVIDED ONLINE AND IN THE SAME MANNER AS THE GOVERNING BOARD PROVIDES
35 ONLINE ACCESS TO MEETING NOTICES.

36 (ii) SUBCOMMITTEE MEETING MATERIALS, MATERIALS THAT ARE PRESENTED
37 AT A SUBCOMMITTEE MEETING AND SUPPLEMENTAL MATERIALS THAT ARE PROVIDED TO
38 THE GOVERNING BOARD MEMBERS IN PREPARATION FOR A GOVERNING BOARD MEETING
39 OR SUBCOMMITTEE MEETING MUST BE PROVIDED EITHER ON REQUEST OR ONLINE. A
40 SCHOOL DISTRICT GOVERNING BOARD THAT PROVIDES MATERIALS PURSUANT TO THIS
41 ITEM ON REQUEST SHALL PROVIDE THE MATERIALS NOT LATER THAN FIVE BUSINESS
42 DAYS AFTER THE DATE ON WHICH THE SCHOOL DISTRICT RECEIVES A REQUEST FOR
43 THE MATERIALS].

44 (b) PROVIDE THE PUBLIC WITH ~~[ONLINE]~~ ACCESS TO THE MATERIALS
45 PRESCRIBED IN SUBDIVISION (a) OF THIS PARAGRAPH AND GOVERNING BOARD
46 MEETING AND SUBCOMMITTEE MEETING MINUTES FOR AT LEAST FIVE YEARS AFTER THE
47 DATE OF THE MEETING.

1 (c) IF THE DISTRICT HAS A STUDENT COUNT OF MORE THAN FIVE THOUSAND
2 STUDENTS, PROVIDE THE PUBLIC WITH A LIVE VIDEO FEED OF EACH GOVERNING
3 BOARD MEETING AND ONLINE ACCESS TO VIDEO RECORDINGS OF EACH GOVERNING
4 BOARD MEETING FOR AT LEAST FIVE YEARS AFTER THE DATE OF THE MEETING.

5 48. IF THE GOVERNING BOARD USES A CONSENT AGENDA FOR A MEETING,
6 ALLOW ANY MEMBER OF THE GOVERNING BOARD TO REMOVE ONE OR MORE ITEMS FROM
7 THE CONSENT AGENDA AT ANY TIME BEFORE THE GOVERNING BOARD VOTES ON THE
8 CONSENT AGENDA. THE GOVERNING BOARD SHALL SEPARATELY DISCUSS AND VOTE ON
9 EACH ITEM THAT IS REMOVED FROM A CONSENT AGENDA.

10 B. Notwithstanding subsection A, paragraphs 7, 9 and 11 of this
11 section, the county school superintendent may construct, improve and
12 furnish school buildings or purchase or sell school sites in the conduct
13 of an accommodation school.

14 C. If any school district acquires real or personal property,
15 whether by purchase, exchange, condemnation, gift or otherwise, the
16 governing board shall pay to the county treasurer any taxes on the
17 property that were unpaid as of the date of acquisition, including
18 penalties and interest. The lien for unpaid delinquent taxes, penalties
19 and interest on property acquired by a school district:

20 1. Is not abated, extinguished, discharged or merged in the title
21 to the property.

22 2. Is enforceable in the same manner as other delinquent tax liens.

23 D. The governing board may not locate a school on property that is
24 less than one-fourth mile from agricultural land regulated pursuant to
25 section 3-365, except that the owner of the agricultural land may agree to
26 comply with the buffer zone requirements of section 3-365. If the owner
27 agrees in writing to comply with the buffer zone requirements and records
28 the agreement in the office of the county recorder as a restrictive
29 covenant running with the title to the land, the school district may
30 locate a school within the affected buffer zone. The agreement may
31 include any stipulations regarding the school, including conditions for
32 future expansion of the school and changes in the operational status of
33 the school that will result in a breach of the agreement.

34 E. A school district, its governing board members, its school
35 council members and its employees are immune from civil liability for the
36 consequences of adopting and implementing policies and procedures pursuant
37 to subsection A of this section and section 15-342. This waiver does not
38 apply if the school district, its governing board members, its school
39 council members or its employees are guilty of gross negligence or
40 intentional misconduct.

41 F. A governing board may delegate in writing to a superintendent,
42 principal or head teacher the authority to prescribe procedures that are
43 consistent with the governing board's policies.

44 G. Notwithstanding any other provision of this title, a school
45 district governing board shall not take any action that would result in a
46 reduction of pupil square footage unless the governing board notifies the
47 school facilities oversight board established by section 41-5701.02 of the

1 proposed action and receives written approval from the school facilities
2 oversight board to take the action. A reduction includes an increase in
3 administrative space that results in a reduction of pupil square footage
4 or sale of school sites or buildings, or both. A reduction includes a
5 reconfiguration of grades that results in a reduction of pupil square
6 footage of any grade level. This subsection does not apply to temporary
7 reconfiguration of grades to accommodate new school construction if the
8 temporary reconfiguration does not exceed one year. The sale of equipment
9 that results in a reduction that falls below the equipment requirements
10 prescribed in section 41-5711, subsection B is subject to commensurate
11 withholding of school district additional assistance monies
12 pursuant to the direction of the school facilities oversight board.
13 Except as provided in section 15-342, paragraph 10, proceeds from the sale
14 of school sites, buildings or other equipment shall be deposited in the
15 school plant fund as provided in section 15-1102.

16 H. Subsections C through G of this section apply to a county board
17 of supervisors and a county school superintendent when operating and
18 administering an accommodation school.

19 I. A school district governing board may delegate authority in
20 writing to the superintendent of the school district to submit plans for
21 new school facilities to the school facilities oversight board for the
22 purpose of certifying that the plans meet the minimum school facility
23 adequacy guidelines prescribed in section 41-5711.

24 J. For the purposes of subsection A, paragraph 37 of this section,
25 attendance boundaries may not be used to require students to attend
26 certain schools based on the student's place of residence.

27 Sec. 3. Section 15-342, Arizona Revised Statutes, is amended to
28 read:

29 15-342. Discretionary powers

30 The governing board OF A SCHOOL DISTRICT may:

31 1. Expel pupils for misconduct.

32 2. Exclude from grades one through eight children WHO ARE under six
33 years of age.

34 3. Make such separation of groups of pupils as ~~it~~ THE GOVERNING
35 BOARD deems advisable.

36 4. Maintain such special schools during vacation as deemed
37 necessary for the benefit of the pupils of the school district.

38 5. Allow a superintendent or principal or representatives of the
39 superintendent or principal to travel for a school purpose, as determined
40 by a majority vote of the board. The board may allow members and
41 members-elect of the board to travel within or without the school district
42 for a school purpose and receive reimbursement. ANY OUT-OF-STATE TRAVEL
43 PURSUANT TO THIS PARAGRAPH MUST BE APPROVED ON A PER-TRIP BASIS BY A
44 MAJORITY ROLL CALL VOTE OF THE GOVERNING BOARD MEMBERS IN A PUBLIC MEETING
45 HELD PURSUANT TO TITLE 38, CHAPTER 3, ARTICLE 3.1. SUBJECT TO THE
46 REQUIREMENTS PRESCRIBED BY PARAGRAPH 40 OF THIS SECTION, THE GOVERNING
47 BOARD SHALL APPROVE OUT-OF-STATE TRAVEL BEFORE THE PROPOSED TRAVEL

1 WHENEVER POSSIBLE. IF PRIOR APPROVAL OF OUT-OF-STATE TRAVEL IS
2 IMPOSSIBLE, THE TRAVEL MUST BE SUBMITTED TO THE GOVERNING BOARD FOR
3 APPROVAL PURSUANT TO PARAGRAPH 41 OF THIS SECTION NOT LATER THAN THIRTY
4 DAYS AFTER THE TRAVEL OCCURS. Any expenditure for travel and subsistence
5 pursuant to this paragraph shall be as provided in title 38, chapter 4,
6 article 2. The designated post of duty referred to in section 38-621
7 shall be construed, for school district governing board members, to be the
8 member's actual place of residence, as opposed to the school district
9 office or the school district boundaries. Such expenditures shall be a
10 charge against the budgeted school district funds. The governing board of
11 a school district shall prescribe procedures and amounts for reimbursement
12 of lodging and subsistence expenses. Reimbursement amounts shall not
13 exceed the maximum amounts established pursuant to section 38-624,
14 subsection C.

15 6. Construct or provide in rural districts housing facilities for
16 teachers and other school employees that the board determines are
17 necessary to operate the school.

18 7. Sell or lease to the state, a county, a city, another school
19 district or a tribal government agency any school property required for a
20 public purpose if the sale or lease of the property will not affect the
21 normal operations of a school within the school district.

22 8. Annually budget and spend monies for membership in an
23 association of school districts within this state.

24 9. Enter into leases or lease-purchase agreements for school
25 buildings or grounds, or both, as lessor or as lessee, for periods of less
26 than twenty years subject to voter approval for construction of school
27 buildings as prescribed in section 15-341, subsection A, paragraph 7.

28 10. Subject to title 41, chapter 56, sell school sites or enter
29 into leases or lease-purchase agreements for school buildings and grounds,
30 as lessor or as lessee, for a period of twenty years or more, but not to
31 exceed ninety-nine years, if authorized by a vote of the school district
32 electors in an election called by the governing board as provided in
33 section 15-491, except that authorization by the school district electors
34 in an election is not required if one of the following requirements is
35 met:

36 (a) The market value of the school property is less than \$50,000 or
37 the property is procured through a renewable energy development agreement,
38 an energy performance contract, which among other items includes a
39 renewable energy power service agreement, or a simplified energy
40 performance contract pursuant to section 15-213.01.

41 (b) The buildings and sites are completely funded with monies
42 distributed by the ~~school facilities~~ division OF SCHOOL FACILITIES within
43 the department of administration or at the direction of the school
44 facilities oversight board, or its predecessor.

1 (c) The transaction involves the sale of improved or unimproved
2 property pursuant to an agreement with the school facilities oversight
3 board in which the school district agrees to sell the improved or
4 unimproved property and transfer the proceeds of the sale to the school
5 facilities oversight board in exchange for monies from the school
6 facilities oversight board for the acquisition of a more suitable school
7 site. For a sale of property acquired by a school district before July 9,
8 1998, a school district shall transfer to the school facilities oversight
9 board that portion of the proceeds that equals the cost of the acquisition
10 of a more suitable school site. If there are any remaining proceeds after
11 the transfer of monies to the school facilities oversight board, a school
12 district shall only use those remaining proceeds for future land purchases
13 approved by the school facilities oversight board, or for capital
14 improvements not funded by the school facilities oversight board for any
15 existing or future facility.

16 (d) The transaction involves the sale of improved or unimproved
17 property pursuant to a formally adopted plan and the school district uses
18 the proceeds of this sale to purchase other property that will be used for
19 similar purposes as the property that was originally sold if the sale
20 proceeds of the improved or unimproved property are used within two years
21 after the date of the original sale to purchase the replacement property.
22 If the sale proceeds of the improved or unimproved property are not used
23 within two years after the date of the original sale to purchase
24 replacement property, the sale proceeds shall be used toward paying any
25 outstanding bonded indebtedness. If any sale proceeds remain after paying
26 for outstanding bonded indebtedness, or if the district has no outstanding
27 bonded indebtedness, sale proceeds shall be used to reduce the district's
28 primary tax levy. A school district shall not use this subdivision unless
29 all of the following conditions exist:

30 (i) The school district is the sole owner of the improved or
31 unimproved property that the school district intends to sell.

32 (ii) The school district did not purchase the improved or
33 unimproved property that the school district intends to sell with monies
34 that were distributed pursuant to title 41, chapter 56.

35 (iii) The transaction does not violate section 15-341,
36 subsection G.

37 11. Review the decision of a teacher to promote a pupil to a grade
38 or retain a pupil in a grade in a common school or to pass or fail a pupil
39 in a course in high school. The pupil has the burden of proof to overturn
40 the decision of a teacher to promote, retain, pass or fail the pupil. In
41 order to sustain the burden of proof, the pupil shall demonstrate to the
42 governing board that the pupil has mastered the academic standards adopted
43 by the state board of education pursuant to sections 15-701 and 15-701.01.
44 If the governing board overturns the decision of a teacher pursuant to
45 this paragraph, the governing board shall adopt a written finding that the
46 pupil has mastered the academic standards. Notwithstanding title 38,
47 chapter 3, article 3.1, the governing board shall review the decision of a

1 teacher to promote a pupil to a grade or retain a pupil in a grade in a
2 common school or to pass or fail a pupil in a course in high school in
3 executive session unless a parent or legal guardian of the pupil or the
4 pupil, if emancipated, disagrees that the review should be conducted in
5 executive session and then the review shall be conducted in an open
6 meeting. If the review is conducted in executive session, the board shall
7 notify the teacher of the date, time and place of the review and shall
8 allow the teacher to be present at the review. If the teacher is not
9 present at the review, the board shall consult with the teacher before
10 making its decision. Any request, including the written request as
11 provided in section 15-341, the written evidence presented at the review
12 and the written record of the review, including the decision of the
13 governing board to accept or reject the teacher's decision, shall be
14 retained by the governing board as part of its permanent records.

15 12. Provide transportation or site transportation loading and
16 unloading areas for any child or children if deemed ~~for~~ **IN** the best
17 interest of the district, whether within or without the district, county
18 or state.

19 13. Enter into intergovernmental agreements and contracts with
20 school districts or other governing bodies as provided in section 11-952.
21 Intergovernmental agreements and contracts between school districts or
22 between a school district and other governing bodies as provided in
23 section 11-952 are exempt from competitive bidding under the procurement
24 rules adopted by the state board of education pursuant to section 15-213.

25 14. Include in the curricula ~~tt~~ **THE GOVERNING BOARD** prescribes for
26 high schools in the school district career and technical education,
27 vocational education and technology education programs and career and
28 technical, vocational and technology program improvement services for the
29 high schools, subject to approval by the state board of education. The
30 governing board may contract for the provision of career and technical,
31 vocational and technology education as provided in section 15-789.

32 15. Suspend a teacher or administrator from the teacher's or
33 administrator's duties without pay for a period of time of not ~~to exceed~~
34 **MORE THAN** ten school days, ~~—~~ if the board determines that suspension is
35 warranted pursuant to section 15-341, subsection A, paragraph 21 or 22.

36 16. Dedicate school property within an incorporated city or town to
37 that city or town or within a county to that county for use as a public
38 right-of-way if both of the following apply:

39 (a) Pursuant to an ordinance adopted by the city, town or county,
40 there will be conferred on the school district privileges and benefits
41 that may include benefits related to zoning.

42 (b) The dedication will not affect the normal operation of any
43 school within the district.

44 17. Enter into option agreements for the purchase of school sites.

45 18. Donate surplus or outdated learning materials, educational
46 equipment and furnishings to nonprofit community organizations if the
47 governing board determines that the anticipated cost of selling the

1 learning materials, educational equipment or furnishings equals or exceeds
2 the estimated market value of the materials.

3 19. Prescribe policies to assess reasonable fees for students to
4 use district-provided parking facilities. The fees are to be applied by
5 the district solely against costs incurred in operating or securing the
6 parking facilities. Any policy adopted by the governing board pursuant to
7 this paragraph shall include a fee waiver provision in appropriate cases
8 of need or economic hardship.

9 20. Establish alternative education programs that are consistent
10 with the laws of this state to educate pupils, including pupils who have
11 been reassigned pursuant to section 15-841, subsection E or F.

12 21. Require a period of silence to be observed at the commencement
13 of the first class of the day in the schools. If a governing board
14 chooses to require a period of silence to be observed, the teacher in
15 charge of the room in which the first class is held shall announce that a
16 period of silence not to exceed one minute in duration will be observed
17 for meditation, and during that time no activities shall take place and
18 silence shall be maintained.

19 22. Require students to wear uniforms.

20 23. Exchange unimproved property or improved property, including
21 school sites, if the governing board determines that the improved property
22 is unnecessary for the continued operation of the school district without
23 requesting authorization by a vote of the school district electors and if
24 the governing board determines that the exchange is necessary to protect
25 the health, safety or welfare of pupils or if the governing board
26 determines that the exchange is based on sound business principles for
27 either:

28 (a) Unimproved or improved property of equal or greater value.

29 (b) Unimproved property that the owner contracts to improve if the
30 value of the property ultimately received by the school district is of
31 equal or greater value.

32 24. For common and high school pupils, assess reasonable fees for
33 optional extracurricular activities and programs conducted when the common
34 or high school is not in session, except that fees shall not be charged
35 for pupils' access to or use of computers or related materials. For high
36 school pupils, the governing board may assess reasonable fees for fine
37 arts and vocational education courses and for optional services, equipment
38 and materials offered to the pupils beyond those required to successfully
39 complete the basic requirements of any other course, except that fees
40 shall not be charged for pupils' access to or use of computers or related
41 materials. Fees assessed pursuant to this paragraph shall be adopted at a
42 public meeting after notice has been given to all parents of pupils
43 enrolled at schools in the district and shall not exceed the actual costs
44 of the activities, programs, services, equipment or materials. The
45 governing board shall authorize principals to waive the assessment of all
46 or part of a fee assessed pursuant to this paragraph if it creates an
47 economic hardship for a pupil. For the purposes of this paragraph,

1 "extracurricular activity" means any optional, noncredit, educational or
2 recreational activity that supplements the education program of the
3 school, whether offered before, during or after regular school hours.

4 25. Notwithstanding section 15-341, subsection A, paragraphs 7 and
5 9, construct school buildings and purchase or lease school sites, without
6 a vote of the school district electors, if the buildings and sites are
7 totally funded from one or more of the following:

8 (a) Monies in the unrestricted capital outlay fund, except that the
9 estimated cost shall not exceed \$250,000 for a district that uses section
10 15-949.

11 (b) Monies distributed at the direction of the school facilities
12 oversight board established by section 41-5701.02 or by the ~~school~~
13 ~~facilities~~ division ~~OF SCHOOL FACILITIES~~ within the department of
14 administration pursuant to title 41, chapter 56.

15 (c) Monies specifically donated for the purpose of constructing
16 school buildings.

17 This paragraph does not eliminate the requirement for an election to raise
18 revenues for a capital outlay override pursuant to section 15-481 or a
19 bond election pursuant to section 15-491.

20 26. Conduct a background investigation that includes a fingerprint
21 check conducted pursuant to section 41-1750, subsection G for certificated
22 personnel and personnel who are not paid employees of the school district,
23 as a condition of employment. A school district may release the results
24 of a background check to another school district for employment purposes.
25 The school district may charge the costs of fingerprint checks to its
26 fingerprinted employee, except that the school district may not charge the
27 costs of fingerprint checks for personnel who are not paid employees of
28 the school district.

29 27. Unless otherwise prohibited by law, sell advertising as
30 follows:

31 (a) Advertisements shall be age appropriate and not promote any
32 substance that is illegal for minors such as alcohol, tobacco and drugs or
33 gambling. Advertisements shall comply with the state sex education policy
34 of abstinence.

35 (b) Advertising approved by the governing board for the exterior of
36 school buses may appear only on the sides of the bus in the following
37 areas:

38 (i) The signs shall be below the seat level rub rail and not extend
39 above the bottom of the side windows.

40 (ii) The signs shall be at least three inches from any required
41 lettering, lamp, wheel well or reflector behind the service door or stop
42 signal arm.

43 (iii) The signs shall not extend from the body of the bus so as to
44 allow a handhold or present a danger to pedestrians.

45 (iv) The signs shall not interfere with the operation of any door
46 or window.

47 (v) The signs shall not be placed on any emergency doors.

1 (c) The school district shall establish an advertisement fund that
2 is composed of revenues from the sale of advertising. The monies in an
3 advertisement fund are not subject to reversion.

4 28. Assess reasonable damage deposits to pupils in grades seven
5 through twelve for using textbooks, musical instruments, band uniforms or
6 other equipment required for academic courses. The governing board shall
7 adopt policies on any damage deposits assessed pursuant to this paragraph
8 at a public meeting called for this purpose after providing notice to all
9 parents of pupils in grades seven through twelve in the school district.
10 Principals of individual schools within the district may waive the damage
11 deposit requirement for any textbook or other item if the payment of the
12 damage deposit would create an economic hardship for the pupil. The
13 school district shall return the full amount of the damage deposit for any
14 textbook or other item if the pupil returns the textbook or other item in
15 reasonably good condition within the time period prescribed by the
16 governing board. For the purposes of this paragraph, "in reasonably good
17 condition" means the textbook or other item is in the same or a similar
18 condition as it was when the pupil received it, plus ordinary wear and
19 tear.

20 29. Notwithstanding section 15-1105, ~~expend~~ SPEND surplus monies in
21 the civic center school fund for maintenance and operations or
22 unrestricted capital outlay if sufficient monies are available in the fund
23 after meeting the needs of programs established pursuant to section
24 15-1105.

25 30. Notwithstanding section 15-1143, spend surplus monies in the
26 community school program fund for maintenance and operations or
27 unrestricted capital outlay if sufficient monies are available in the fund
28 after meeting the needs of programs established pursuant to section
29 15-1142.

30 31. Adopt guidelines to standardize the format of the school report
31 cards required by section 15-746 for schools within the district.

32 32. Adopt policies that require parental notification when a law
33 enforcement officer interviews a pupil on school grounds. Policies
34 adopted pursuant to this paragraph shall not impede a peace officer from
35 performing the peace officer's duties. If the school district governing
36 board adopts a policy that requires parental notification:

37 (a) The policy may provide reasonable exceptions to the parental
38 notification requirement.

39 (b) The policy shall set forth whether and under what circumstances
40 a parent may be present when a law enforcement officer interviews the
41 pupil, including reasonable exceptions to the circumstances under which a
42 parent may be present when a law enforcement officer interviews the pupil,
43 and shall specify a reasonable maximum time after a parent is notified
44 that an interview of a pupil by a law enforcement officer may be delayed
45 to allow the parent to be present.

1 33. Enter into voluntary partnerships with any party to finance
2 with monies other than school district monies and cooperatively design
3 school facilities that comply with the adequacy standards prescribed in
4 section 41-5711 and the square footage per pupil requirements pursuant to
5 section 41-5741, subsection D, paragraph 3, subdivision (b). The design
6 plans and location of any such school facility shall be submitted to the
7 school facilities oversight board for approval pursuant to section
8 41-5741, subsection O. If the school facilities oversight board approves
9 the design plans and location of any such school facility, the party in
10 partnership with the school district may cause to be constructed and the
11 district may begin operating the school facility before monies are
12 distributed at the direction of the school facilities oversight board
13 pursuant to section 41-5741. Monies distributed from the new school
14 facilities fund to a school district in a partnership with another party
15 to finance and design the school facility shall be paid to the school
16 district pursuant to section 41-5741. The school district shall reimburse
17 the party in partnership with the school district from the monies paid to
18 the school district pursuant to section 41-5741, in accordance with the
19 voluntary partnership agreement. Before the school facilities oversight
20 board directs the distribution of any monies pursuant to this subsection,
21 the school district shall demonstrate to the school facilities oversight
22 board that the facilities to be funded pursuant to section 41-5741,
23 subsection O meet the minimum adequacy standards prescribed in section
24 41-5711. If the cost to construct the school facility exceeds the amount
25 that the school district receives from the new school facilities fund, the
26 partnership agreement between the school district and the other party
27 shall specify that, except as otherwise provided by the other party, any
28 such excess costs shall be the responsibility of the school district. The
29 school district governing board shall adopt a resolution in a public
30 meeting that an analysis has been conducted on the prospective effects of
31 the decision to operate a new school with existing monies from the school
32 district's maintenance and operations budget and how this decision may
33 affect other schools in the school district. If a school district
34 acquires land by donation at an appropriate school site approved by the
35 school facilities oversight board and a school facility is financed and
36 built on the land pursuant to this paragraph, the school facilities
37 oversight board shall direct the distribution of an amount equal to twenty
38 percent of the fair market value of the land that can be used for academic
39 purposes. The school district shall place the monies in the unrestricted
40 capital outlay fund and increase the unrestricted capital budget limit by
41 the amount of the monies placed in the fund. Monies distributed under
42 this paragraph shall be distributed from the new school facilities fund
43 pursuant to section 41-5741. If a school district acquires land by
44 donation at an appropriate school site approved by the school facilities
45 oversight board and a school facility is financed and built on the land
46 pursuant to this paragraph, the school district shall not receive monies

1 for the donation of real property pursuant to section 41-5741,
2 subsection F. It is unlawful for:

3 (a) A county, city or town to require as a condition of any land
4 use approval that a landowner or landowners that entered into a
5 partnership pursuant to this paragraph provide any contribution, donation
6 or gift, other than a site donation, to a school district. This
7 subdivision only applies to the property in the voluntary partnership
8 agreement pursuant to this paragraph.

9 (b) A county, city or town to require as a condition of any land
10 use approval that the landowner or landowners located within the
11 geographic boundaries of the school subject to the voluntary partnership
12 pursuant to this paragraph provide any donation or gift to the school
13 district except as provided in the voluntary partnership agreement
14 pursuant to this paragraph.

15 (c) A community facilities district established pursuant to title
16 48, chapter 4, article 6 to be used for reimbursement of financing the
17 construction of a school pursuant to this paragraph.

18 (d) A school district to enter into an agreement pursuant to this
19 paragraph with any party other than a master planned community party. Any
20 land area consisting of at least three hundred twenty acres that is the
21 subject of a development agreement with a county, city or town entered
22 into pursuant to section 9-500.05 or 11-1101 shall be deemed to be a
23 master planned community. For the purposes of this subdivision, "master
24 planned community" means a land area consisting of at least three hundred
25 twenty acres, which may be noncontiguous, that is the subject of a zoning
26 ordinance approved by the governing body of the county, city or town in
27 which the land is located that establishes the use of the land area as a
28 planned area development or district, planned community development or
29 district, planned unit development or district or other land use category
30 or district that is recognized in the local ordinance of such county, city
31 or town and that specifies the use of such land is for a master planned
32 development.

33 34. Enter into an intergovernmental agreement with a presiding
34 judge of the juvenile court to implement a law-related education program
35 as defined in section 15-154. The presiding judge of the juvenile court
36 may assign juvenile probation officers to participate in a law-related
37 education program in any school district in the county. The cost of
38 juvenile probation officers who participate in the program implemented
39 pursuant to this paragraph shall be funded by the school district.

40 35. Offer to sell outdated learning materials, educational
41 equipment or furnishings at a posted price commensurate with the value of
42 the items to pupils who are currently enrolled in that school district
43 before those materials are offered for public sale.

44 36. If the school district is a small school district as defined in
45 section 15-901, and if allowed by federal law, opt out of federal grant
46 opportunities if the governing board determines that the federal
47 requirements impose unduly burdensome reporting requirements.

1 37. Prescribe and enforce policies and procedures for the emergency
2 administration of inhalers by trained employees of the school district and
3 nurses who are under contract with the school district pursuant to section
4 15-158.

5 38. Develop policies and procedures to allow principals to budget
6 for or assist with budgeting federal, state and local monies.

7 39. Subject to article IX, section 7, Constitution of Arizona, the
8 laws pertaining to travel and subsistence, gifts, grants, including
9 federal grants, or devises and policies adopted by the department of
10 education, provide food and beverages at school district events, including
11 official school functions and trainings.

12 40. BEFORE VOTING ON WHETHER TO APPROVE PROPOSED OUT-OF-STATE
13 TRAVEL PURSUANT TO PARAGRAPH 5 OF THIS SECTION, THE GOVERNING BOARD SHALL
14 DO ALL OF THE FOLLOWING:

15 (a) IDENTIFY EACH INDIVIDUAL WHO MAY TRAVEL OUT OF STATE, INCLUDING
16 THE INDIVIDUAL'S JOB TITLE. AN INDIVIDUAL WHO IS NOT IDENTIFIED IN THE
17 ORIGINAL PROPOSAL THAT IS APPROVED BY THE GOVERNING BOARD PURSUANT TO THIS
18 PARAGRAPH MAY TRAVEL OUT OF STATE IN PLACE OF AN INDIVIDUAL WHO WAS
19 IDENTIFIED IN THE ORIGINAL PROPOSAL ONLY IF BOTH OF THE FOLLOWING APPLY:

20 (i) THE SUPERINTENDENT NOTIFIES THE GOVERNING BOARD IN WRITING AND
21 AT THE NEXT REGULAR PUBLIC MEETING OF THE GOVERNING BOARD THAT AN
22 INDIVIDUAL WHO WAS NOT IDENTIFIED IN THE ORIGINAL PROPOSAL TRAVELED IN
23 PLACE OF THE INDIVIDUAL WHO WAS IDENTIFIED IN THE ORIGINAL PROPOSAL. THE
24 NOTIFICATION PURSUANT TO THIS ITEM SHALL INCLUDE ALL OF THE INFORMATION
25 REQUIRED BY THIS PARAGRAPH FOR THE ORIGINAL PROPOSAL.

26 (ii) THE TRAVEL EXPENSES INCURRED BY THE INDIVIDUAL WHO WAS NOT
27 IDENTIFIED IN THE ORIGINAL PROPOSAL DO NOT EXCEED THE ESTIMATED COSTS
28 PURSUANT TO SUBDIVISION (c) OF THIS PARAGRAPH FOR THE INDIVIDUAL WHO WAS
29 IDENTIFIED IN THE ORIGINAL PROPOSAL.

30 (b) IDENTIFY THE NAME AND ADDRESS OF THE LODGING FACILITY AT WHICH
31 EACH INDIVIDUAL WILL STAY DURING THE PROPOSED TRAVEL.

32 (c) ESTIMATE THE TOTAL COST OF THE PROPOSED TRAVEL AND THE COST PER
33 INDIVIDUAL.

34 (d) PUBLICLY NOTE AND DESCRIBE BOTH THE SCHOOL PURPOSES OF THE
35 PROPOSED TRAVEL AND THE BENEFIT OF THE PROPOSED TRAVEL TO THE SCHOOL
36 DISTRICT.

37 41. IF OUT-OF-STATE TRAVEL THAT HAS ALREADY OCCURRED IS SUBMITTED
38 TO THE GOVERNING BOARD FOR APPROVAL PURSUANT TO PARAGRAPH 5 OF THIS
39 SECTION:

40 (a) BEFORE VOTING ON WHETHER TO APPROVE THE TRAVEL, THE GOVERNING
41 BOARD SHALL IDENTIFY ALL OF THE FOLLOWING:

42 (i) EACH INDIVIDUAL, INCLUDING THE INDIVIDUAL'S JOB TITLE, WHO
43 TRAVELED OUT OF STATE.

44 (ii) THE NAME AND ADDRESS OF THE LODGING FACILITY AT WHICH EACH
45 INDIVIDUAL STAYED DURING THE TRAVEL.

46 (iii) THE TOTAL COST OF THE TRAVEL AND THE COST PER INDIVIDUAL.

1 (iv) THE SCHOOL PURPOSES OF THE TRAVEL AND THE BENEFIT OF THE
2 TRAVEL TO THE SCHOOL DISTRICT.

3 (b) IF THE GOVERNING BOARD DOES NOT APPROVE OUT-OF-STATE TRAVEL
4 THAT HAS ALREADY OCCURRED, THE GOVERNING BOARD MAY REQUIRE EACH INDIVIDUAL
5 WHO TRAVELED OUT OF STATE WITHOUT APPROVAL TO REIMBURSE THE SCHOOL
6 DISTRICT FOR ANY EXPENSES THAT WERE PAID BY THE DISTRICT FOR THE TRAVEL.

7 Enroll and engross to conform

8 Amend title to conform

MATT GRESS

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